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**TENTATIVE RULINGS**  
**August 27, 2026**

| #  | Case Name                                                                       | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
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| 1. | <a href="#">30-2024-01446495-CU-FR-NJC</a><br>WVJP 2021-4, LP<br>vs. Tucciarone | <p>Before the Court is a Motion to Compel Further Responses to Special Interrogatories, Set Two, and Sanctions ("Motion") brought by Plaintiff WVJP 2021-4, LP ("Plaintiff") against Defendant Joseph Tucciarone ("Defendant"). ROA 173.</p> <p>Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2030.300(d) and 2023.010, compelling Defendant to serve further, verified, code compliant responses to Plaintiff's Special Interrogatories ("SROG"), Set Two, Numbers 2-9, and imposing monetary discovery sanctions upon Defendant and Defendant's attorneys of record, Goe &amp; Forsythe, LLP, joint and severally, in the amount of \$2,962.50, for the costs borne by Plaintiff in bringing this motion. ROA 173, p.2; ROA 171, p.1.</p> |

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|  | <p>I. Relevant Timeline of Events</p> <p>On October 16, 2025, the parties executed a Stipulated Protective Order governing the exchange of confidential information and documents. ROA 173, p.17. The Order was filed with the Court on October 22, 2025. ROA 119.</p> <p>On February 6, 2026, Plaintiff propounded SROG, Set Two, upon Defendant. ROA 173, p.17.</p> <p>On April 3, 2026, Defendant served responses to Plaintiff's SROG, Set Two. ROA 173, p.17.</p> <p>On April 17, 2026, Defendant served supplemental responses to Plaintiff's SROG, Set Two, Numbers 2-9. ROA 173, p.18.</p> <p>On May 19, 2026, Plaintiff emailed Defendant in an attempt to resolve allegedly noncompliant responses to Plaintiff's SROG, Set Two. ROA 173, p.18.</p> <p>On June 3, 2026, after significant meet and confer efforts, Plaintiff served the Motion upon Defendant by mail and email. ROA 173, p.31.</p> <p>On June 16, 2026, the Court ordered the parties to attend an Informal Discovery Conference ("IDC"), facilitated by the Court, on July 20, 2026. ROA 185.</p> <p>On July 20, 2026, the parties attended the IDC as ordered but were unable to resolve their dispute regarding Plaintiff's SROG, Set Two, Numbers 2-9. ROA 210.</p> <p>On July 23, 2026, Defendant served Third Supplemental Responses to Plaintiff's SROG, Set Two, Numbers 2-9. ROA 216, p.76.</p> <p>The Court notes here that Defendant's Supplemental and Third Supplemental Responses will be treated separately on the basis that any supplemental responses submitted after service of Plaintiff's motion, if deemed code compliant, will not relieve Defendant from liability for sanctions for untimely compliance. <i>See</i> Cal. Rules of Court Rule 3.1348</p> |
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("[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed."); *see also Deck v. Developers Inv. Co., Inc.*, 89 Cal. App. 5th 808, 831 (2023) ("[u]ntimely compliance is not compliance.").

## II. Code Compliant Responses to Special Interrogatories

A party's response to interrogatories must consist of either: (i) an answer, (ii) an objection, or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a).

The responding party has a duty to answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. *Deyo v. Kilbourne*, 84 Cal. App. 3d 771, 783 (1978).

Answers must be fully responsive and may not reference other documents in lieu of a response. *Deyo, supra*, 84 Cal. App. 3d at 783-84 (finding "it is not proper to answer by stating 'See my Deposition', or 'See my pleading . . . .'"). If a response requires reference to another document, the document should be summarized and included in a comprehensive response. *Id.*

Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete answer, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); *see Regency Health Services, Inc. v. Super. Ct.*, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption on the basis of incompetency from the general duty to conduct a reasonable investigation to obtain responsive information to discovery requests).

This duty encompasses the responding party's responsibility to provide information available from sources under their control, such as the party's lawyer,

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|  | <p>agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Castaline v. City of L.A.</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that “[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added).</p> <p>If a party is still unable to provide a complete answer after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782.</p> <p>Finally, answers must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating “[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories.”).</p> <p>If an interrogatory requires an abstract, an audit, or a summary of information contained in records under the responding party’s control, the responding party may elect to permit the inspection and copying of the records in lieu of an answer, as long as the burden and expense of doing so would be substantially the same for both parties. Cal. Civ. Proc. Code 2030.230. Electing this option is tantamount to confirming that the required records exist and contain the information necessary to answer the interrogatory. <i>Deyo, supra</i>, 84 Cal. App. 3d at 784 (<i>citing Kaiser Found. Hospitals v. Super. Ct. for Los Angeles Cnty</i>, 275 Cal. App. 2d 801, 805 (1969).</p> <p>Objections must be stated individually, must specifically reference the interrogatory to which it is directed, and must clearly set forth the specific ground for the objection. Cal. Civ. Proc. Code §§ 2030.210(c), 2030.240(b). Blanket objections to an entire set of interrogatories and “boilerplate” objections, although sanctionable, are considered sufficient to preserve only objections raised on the grounds of attorney client or work product privileges, and only if they are timely served. <i>Korea Data Systems Co. v. Super. Ct.</i>, 51 Cal. App. 4th 1513, 1516 (1997).</p> |
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The responding party bears the burden of substantiating its objections to interrogatories. *Coy v. Super. Ct. of Contra Costa Cnty*, 58 Cal. 2d 210, 220 (1962). When objecting to interrogatories, responding parties must show “facts from which the trial court might find that the interrogatories were interposed for improper purposes.” *Id.*

“The objection of [undue] burden is valid only when that burden is *demonstrated* to result in injustice. *West Pico Furniture Co. v. Super. Ct.*, 56 Cal. 2d 407, 418 (1961) (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” *Mead Reinsurance Co. v. Super. Ct.*, 188 Cal. App. 3d 313, 321 (1986) (quoting *West Pico, supra*, 56 Cal. 2d at 417).

Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges Benchbook Civ. Proc. Discovery § 5.5. For interrogatories, “[w]hen a question is somewhat ambiguous, but ‘the nature of the information sought is apparent,’ the question must be answered.” *Id.* (citing *Deyo, supra*, 84 Cal. App. 3d at 783). If a court determines that a request for admission or interrogatory is “too ambiguous to allow intelligent reply” it may either sustain the objection or order the question rephrased. *Cembrook v. Super. Ct In and For City and Cnty of S.F.*, 56 Cal. 2d 423, 430 (1961).

To sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” *Pacific Tel. & Tel. Co. v. Super. Ct.*, 2 Cal. 3d 161, 173 (1970).

“For discovery purposes, information is relevant if it might reasonably assist a party in *evaluating* the case, *preparing* for trial, or *facilitating* settlement.” *Gonzalez v. Super. Ct.*, 33

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|  | <p>Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.). “Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence.” <i>Lopez v. Watchtower Bible and Tract Soc’y of N.Y., Inc.</i>, 246 Cal. App. 4th 566, 591 (2016). “[D]oubts as to relevance should generally be resolved in favor of permitting discovery.” <i>Pacific Tel., supra</i>, 2 Cal. App. 3d at 173.</p> <p>An objection on the grounds that a specially prepared interrogatory is compound, conjunctive, or disjunctive is sustained where more than a single subject is covered by the question. <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1291 (2000) (“[q]uestions regarding the same subject should be allowed although they include an ‘and’ or ‘or.’”). The purpose of California Code of Civil Procedure Section 2030.060(f) is to “prevent questions worded so as to require more information that could be obtained by 35 separate questions.” <i>Id.</i> (quoting Weil &amp; Brown, Cal. Prac. Guide: Civil Proc. Before Trial, ¶ 8:978.1, p. 8F-21 (The Rutter Group 2009)).</p> <p>The attorney client privilege is “absolute and prevents disclosure of the communication [between a client and attorney] regardless of its relevance, necessity or other circumstances peculiar to the case.” <i>Kerner v. Super. Ct.</i>, 206 Cal. App. 4th 84, 111 (2012) (citing <i>Costco Wholesale Corp. v. Super. Ct.</i>, 47 Cal.4th 725, 733, 101 (2009)).</p> <p>A communication between a client and their attorney is not privileged “unless the client intends that it be treated in confidence.” <i>D.I. Chadbourne, Inc. v. Super. Ct. of City and Cnty of S.F.</i>, 60 Cal. 2d 723, 732 (1964) (citations omitted); see Cal. Evid. Code § 952 (defining confidential communication as that “information transmitted between a client and [their] lawyer in the course of that relationship and in confidence by a means which, so far as the client is aware, discloses the information to no third persons other than those who are present to further the interest of the client . . .”).</p> <p>The privilege only extends to requests which call for, rather than refer to confidential communications between attorney</p> |
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|  |  | <p>and client. <i>Coy, supra</i>, 58 Cal. 2d at 219 (finding that a question seeking to elicit the date on which a party made a confidential communication with their attorney, rather than the substance of the communication, did not fall within the purview of the attorney client privilege.)</p> <p>The party asserting the privilege bears the initial burden of presenting facts necessary to support a finding that the communication was “made in the course of an attorney-client relationship.” <i>Costco, supra</i>, 47 Cal. 4th at 733 (citations omitted). The burden then shifts to the propounding party to establish that either “the communication was not confidential or that the privilege does not for other reasons apply[.]” <i>e.g.</i>, that the privilege was waived. <i>Id.</i> (citations omitted).</p> <p>The Supreme Court of California has recognized that “the right of privacy extends to one’s confidential financial affairs.” <i>Valley Bank of Nevada v. Super. Ct.</i>, 15 Cal. 3d 652, 656 (1975). However, an important caveat to <i>Valley Bank</i> is that it more accurately stands for the proposition that a person has a reasonable expectation that a <i>financial institution</i> with whom a party shares a confidential relationship will not divulge that person’s confidential information absent <i>compulsion by legal process</i>. <i>Id.</i> at 657; <i>Garrabrants v. Erhart</i>, 98 Cal. App. 5th 486, 499 (2023).</p> <p>Thus, a person does not have a reasonable expectation of privacy in their financial affairs in all circumstances. <i>Garrabrants, supra</i>, 98 Cal. App. 5th at 500. Discovery of confidential financial information is permitted if the information is relevant to the subject matter at issue. <i>Dompeling v. Super. Ct.</i>, 117 Cal. App. 3d 798, 808.</p> <p>Courts consider the following factors when an objection is made to the discovery of sensitive financial information: (i) the purpose for which the information is sought; (ii) the potential ramifications of disclosure on the parties and on trial; (iii) the nature of the opposing party’s objections; (iv) whether the court can issue an order that promotes partial disclosure, another form of disclosure, or can fashion certain safeguards that permit disclosure only after the requesting party has met certain criteria that are just under</p> |
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|  | <p>the circumstances. <i>Greyhound Corp. v. Super. Ct.</i>, 56 Cal 2d 355, 382-83.</p> <p>A discovery request may be deemed overly broad if it results in an undue burden, seeks irrelevant information, or presents a serious intrusion into protected privacy interests. Cal. Judges Benchbook Civ. Proc. Discovery § 5.5; <i>Lopez, supra</i>, 246 Cal. App. 4th at 578-79 (2016) (rejecting a responding party's overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." Cal. Civ. Proc. Code § 2017.020.</p> <p style="text-align: center;">a. Defendant's Supplemental Responses to Plaintiff's SROG, Set Two, Nos. 1-9</p> <p>As a threshold matter, the Court will address Defendant's objections to Plaintiff's SROG, Set Two, Number 1, as any further response that may be required to Number 2 is dependent upon a finding that Defendant's objections to Number 1 are overruled. <i>See</i> ROA 216, p.35.</p> <p>Here, Defendant's Supplemental responses to Plaintiff's SROG, Set One, Numbers 1-9, offer boilerplate objections on the grounds that the interrogatories are compound, vague and ambiguous, present an undue burden, are overbroad, implicate the attorney-client privilege, and seek irrelevant information. ROA 171. Other objections raised, including Defendant's reference to objections raised in Defendant's preliminary statement, are not considered on the grounds that they are either not valid objections to interrogatories or fail to specifically reference the interrogatory to which they are raised.</p> <p>The Court finds that none of Plaintiff's SROGs at issue are impermissibly compound. Accordingly, all of Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds they are compound, are <b>OVERRULED</b>.</p> |
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|  | <p>The Court finds that none of Plaintiff's SROGs at issue are so unintelligible as to preclude an intelligent reply. Accordingly, all of Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of ambiguity, are <b>OVERRULED</b>.</p> <p>The Court finds that Defendant's Supplemental Responses fail to provide sufficient facts showing the trouble and expense entailed in responding to Plaintiff's SROGs at issue, or that doing so would present a burden incommensurate with the result sought. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of undue burden are <b>OVERRULED</b>.</p> <p>The Court also finds that Defendant's Supplemental Responses fail to show how Plaintiff's SROGs at issue cannot reasonably lead to the discovery of admissible evidence. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9 on the grounds of irrelevance are <b>OVERRULED</b>.</p> <p>In addition to the foregoing, the Court finds that Defendant's Supplemental Responses also fail to show how Plaintiff's SROGs at issue present a serious intrusion into a protected privacy interest of Defendant. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of overbreadth, are <b>OVERRULED</b>.</p> <p>Furthermore, the Court finds that none of Plaintiff's SROGs at issue explicitly call for the disclosure of confidential communications between Defendant and Defendant's attorney. Additionally, the Court finds that Defendant's Supplemental Responses fail to demonstrate how Plaintiff's SROGs implicate communications between Defendant and Defendant's attorney that Defendant intended to remain confidential, or that the SROGs seek communications made in the course of the attorney-client relationship between Defendant and Defendant's attorney. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 1-9, on the grounds of attorney-client privilege</p> |
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|  | <p>are <b>OVERRULED</b>.</p> <p>Finally, the Court finds that Defendant's Supplemental Responses to Plaintiff's SROGs at issue provide evasive answers that are not code compliant. ROA 171. Defendant neither leverages sources within their employ that could provide the requested information, nor details the efforts made to obtain the information despite Defendant's lapse in memory.</p> <p>Pursuant to the foregoing, the Court finds that <i>none</i> of Defendant's Supplemental Responses to Plaintiff's SROG, Set Two, Nos. 1-9, are code compliant.</p> <p>b. Defendant's Third Supplemental Responses to Plaintiff's SROG, Set Two, Nos. 1-9</p> <p>In addition to incorporating the objections from Defendant's Supplemental Responses, all of which are <b>OVERRULED</b>, Defendant's Third Supplemental Responses object to Plaintiff's SROG, Set Two, Numbers 1-9 on the grounds that the inquiries implicate Defendants' protected privacy interest in Defendant's confidential financial information. ROA 216, Exh. D.</p> <p>The Court finds that the parties' Stipulated Protective Order (ROA 119) is sufficient to assuage any concerns regarding the disclosure of Defendant's confidential financial information. Accordingly, Defendant's objections to Plaintiff's SROG, Set Two, Numbers 2-9 are also <b>OVERRULED</b>.</p> <p>Additionally, the Court finds that Defendant's Third Supplemental Responses also provide evasive answers that do not answer the questions posed and present additional information not relevant to Plaintiff's inquiries. ROA 216, Exh. D. Hence, none of Defendant's Third Supplemental Responses cures the deficiencies in Defendant's Supplemental Responses and are therefore <i>also</i> not code compliant.</p> <p>Accordingly, Plaintiff is entitled to further, verified, code compliant responses to Plaintiff's SROG, Set Two, Numbers 2-9, without objections.</p> |
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### III. Sanctions re: Motions to Compel Further Responses to Discovery

'Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” *Ellis v. Toshiba Am. Info. Sys. Inc.*, 218 Cal. App. 4th 853, 878 (2013) (quoting *Clement, supra*, 177 Cal. App. 4th at 1286-1287).

Courts must impose monetary sanctions against any party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demands for production, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h).

The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” *Doe v. U.S. Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434 (2011).

Here, Defendant does not offer, and the Court does not find, any substantial justification for Defendant’s failure to provide code compliant responses to Plaintiff’s SROG, Set Two, Numbers 2-9. Additionally, the Court finds no reason why the imposition of monetary discovery sanctions upon Defendant would result in prejudice to Plaintiff. Thus, sanctions are mandatory and just.

### IV. Assigning Liability for Sanctions

California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts *shall* impose monetary sanctions absent

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|  |  | <p>a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i></p> <p>When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added).</p> <p>The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense).</p> <p>If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney’s declarations show attorney attempted to convince client to comply).</p> <p>If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See generally <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261 (1993).</p> <p>If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. See generally</p> |
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*Cornerstone, supra*, 56 Cal. App. 5th at 799.

Here, the parties do not argue, and the Court does not find, that Defendant's failure to serve code compliant responses to Plaintiff's SROG, Set Two, Numbers 1-9 is attributable to client misconduct. Accordingly, the Court assigns liability for the sanctions imposed for discovery misuse upon Defendant's counsel only.

#### V. Determining a Reasonable Sanctions Amount

Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. *See Cornerstone, supra*, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness).

"The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." *Cornerstone, supra*, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. *Id.*, (citing *Parker v. Wolters Kluwer U.S., Inc.*, 149 Cal. App. 4th 285, 294 (2007)).

"After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions." *In re Marriage of Moore*, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added).

Having considered the above principles in light of Plaintiff's declaration addressing the costs incurred in bringing this Motion, the Court finds that Plaintiff is entitled to a monetary discovery sanctions award of \$2,962.50.

Accordingly, Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two, and Sanctions (ROA 173) is **GRANTED**.

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|    |                                                                                          | <p>Defendant is <b>ORDERED</b> to serve further, verified, code compliant responses to Plaintiff's Special Interrogatories, Set Two, Numbers 2-9, without objections, no later than September 10, 2026.</p> <p>Moreover, the Court <b>IMPOSES</b> monetary discovery sanctions upon Defendant's counsel, Goe &amp; Forsythe, LLP, in the total collective amount of \$2,962.50, due and payable to Versus Law Group, APC, no later than thirty (30) days after receipt of notice of this Order.</p> <p>Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 2. | <a href="#">30-2021-01198262-CU-BC-WJC</a><br>CA-MRE Holdings, LLC vs. Sierra Creek, LLC | <p>Before the Court is a Motion to Quash ("Motion") plaintiff CA-MRE Holdings, LLC's ("Plaintiff") Deposition Subpoena for the Production of Business Records brought by defendant Russel Singer ("Defendant") and nonparty Adobe Oil Development Corporation ("Adobe") (collectively, "Movants"). ROA 291.</p> <p>Movants seek an order, pursuant to California Code of Civil Procedure Section 1987.1, quashing Plaintiff's Deposition Subpoena for the Production of Business Records dated June 19, 2026, and noticed for production on July 15, 2026 (the "Adobe Subpoena"), in its entirety, or in the alternative, modifying it and issuing a protective Order. ROA 291.</p> <p>Movants additionally seek an order, pursuant to California Code of Civil Procedure Section 1987.2, imposing monetary sanctions upon Plaintiff for Movants' reasonable expenses, including attorney's fees. ROA 370, pp. 8, 9.</p> <p>Plaintiff requests that the Court deny Movants' motion and seeks an order compelling compliance with the Adobe Subpoena within three (3) days, or prior to the scheduled trial on August 31, 2026. ROA 352 p.15.</p> <p>I. Notice of Motion Requirements</p> <p>Authorization of relief directing compliance with a subpoena, "upon motion reasonably made" invokes the notice and hearing requirements generally applicable to</p> |